

25AVCV00723 25AVCV00723

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00723 Hearing Date: September 3, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

HENRY CORBETT,

Plaintiff,

v.

GENERAL MOTORS, LLC.; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00723

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: September 3, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an action arising under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Plaintiff's counsel Strategic Legal Practices, APC (SLP) moves to be relieved as counsel.

On June 9, 2025, Plaintiff Henry Corbett (Plaintiff) filed a complaint against Defendant, asserting five causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, and (5) fraudulent inducement – concealment. Plaintiff alleges that on November 30, 2022, Plaintiff entered into a warranty contract with Defendant regarding a 2022 Chevrolet Silverado, which was manufactured by Defendant, and that at the time of and after purchase, nonconformities to warranty existed within the express warranty period, which Defendant failed to remedy as required pursuant to the Song-Beverly Act. (Compl., ¶¶ 6, 11, 15.)

On August 18, 2025, Defendant filed a demurrer to the complaint.

On November 12, 2025, Plaintiff filed a first amended complaint (FAC) and Defendant's demurrer was subsequently withdrawn.

On December 18, 2025, Defendant filed a demurrer to the fifth cause of action for fraudulent inducement – concealment in the FAC.

On February 13, 2026, Defendant filed a motion for compliance to compel Plaintiff's appearance at a deposition.

On April 10, 2026, Defendant filed an ex parte application to continue trial and all related deadlines on the basis that it had been unable to take Plaintiff's deposition.

On April 22, 2026, Defendant filed a second motion for compliance and request for sanctions for Plaintiff's failure to appear for deposition.

On April 28, 2026, Defendant's demurrer to the FAC was sustained without leave to amend. Defendant's February 13, 2026 motion for compliance was also granted with monetary sanctions and Plaintiff was ordered to appear for his deposition. The Court also granted Defendant's ex parte application for continuance of trial and all related dates, and trial was continued to January 22, 2027.

On April 29, 2026, Defendant filed an answer to the FAC.

On May 20, 2026, Defendant filed a motion for terminating sanctions, issue sanctions, and evidence sanctions against Plaintiff.

On July 29, 2026, Plaintiff's counsel filed the present motion to be relieved as counsel, asserting that counsel's firm had lost contact with Plaintiff.

On August 11, 2026, the Court granted Defendant's motion for compliance and request for sanctions and ordered Plaintiff to appear for deposition within 10 days. Plaintiff's counsel was ordered to file a supplemental declaration no later than three court days before the hearing on the request for terminating sanctions to provide the Court with a status update regarding contact with Plaintiff and Plaintiff's deposition.

On August 20, 2026, Plaintiff's counsel Tyson R. Smith of Strategic Legal Practices, APC (SLP) filed a declaration providing the Court with an update on the status of SLP's contact with Plaintiff and the status of Plaintiff's deposition, stating SLP still

failed to make any contact with Plaintiff and his deposition remains uncompleted.

The motion to be relieved is unopposed.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Cal. Rules of Court, rule 3.1362(d)(1).) "[C]urrent' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current." (Id at rule 3.1362(d).)

III. Discussion

Application – Plaintiff's Counsel SLP moves to be relieved as counsel for Plaintiff. Counsel has complied with the statutory requirements of Rule 3.1362 and has filed an MC-051 containing all required information and directed to Plaintiff and served via electronic mail and standard mail. Counsel has also provided an MC-052 form, declaring that despite repeated, diligent efforts, counsel has lost contact with Plaintiff. The MC-052 form also provides that Plaintiff's last known address has been confirmed as current within the past 30 days by mail with return receipt requested, and appropriately lists the hearings on calendar at the time of filing. Finally, Counsel has provided an MC-053 Order form with all required information.

The Court finds minimal prejudice to Plaintiff. While trial is set to commence on January 22, 2027, the Court finds there is sufficient time for Plaintiff to retain counsel to represent him in this action if he so chooses. It is clear from the representations of counsel that Plaintiff himself has failed to respond to his counsel, appear for deposition, or participate in his case for at least the last few months, but Plaintiff has ample opportunity to reinvolve himself, either with new counsel or as a

self-represented litigant prior to trial. Aside from the motion for sanctions, set for hearing concurrently with the present motion, no other substantive hearing dates are on calendar until the final status conference on January 13, 2027.

Accordingly, Counsel's motion to be relieved is GRANTED.

IV. Conclusion

Plaintiff's Counsel Strategic Legal Practices, APC's Motion to be Relieved as Counsel is GRANTED.